		Seventh Cause of Action for Injunctive Relief Respondents contend this cause of action fails because it is redundant, given that the CPRA explicitly authorizes a petitioner to seek a writ of mandate to compel the inspection of public records, and it is uncertain. Demurrers for uncertainty "are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond." (*Lickiss v. Fin. Indus. Regulatory Auth*. (2012) 208 Cal.App.4th 1125, 1135.) Here, the Petition is not incomprehensible. Thus, the Demurrer based on uncertainty is OVERRULED. However, "[i]njunctive relief is a remedy, not a cause of action. [Citations.] A cause of action must exist before a court may grant a request for injunctive relief." (*Allen v. City of Sacramento* (2015) 234 Cal.App.4th 41, 65.) Thus, Petitioner's seventh cause of action is improper. Rather than asserting a separate cause of action for injunctive relief, Petitioner may obtain the requested injunction if she prevails on her first cause of action for violation of the CPRA. Thus, the Demurrer to the seventh cause of action is SUSTAINED without leave to amend. *Eighth Cause of Action for Statutory Penalties and Sanctions* Respondents argue this cause of action misstates the remedies available under Government Code section 7923.15, which does not provide for a separate cause of action. Respondents further argue that Petitioner is not entitled to recover attorney's fees as a pro se litigant. Section 7923.15 provides that a requester who prevails in litigation shall be awarded costs and reasonable attorney's fees. While Petitioner may be entitled to an award of costs if she prevails in this litigation, this is a remedy and not a separate cause of action. Thus, the Demurrer to the eighth cause of action is SUSTAINED without leave to amend. The Case Management Conference is continued to October 22, 2026 at 1:30 p.m. *Moving party to give notice.*
107	Holl vs. ADK Bancorp, Inc., 22-01257212	*Call Clerk for Tentative Ruling*
108	Falevich vs. Hyundai Motor America, 26-01564960	Defendant Hyundai Motor America ("Defendant") moves to compel arbitration pursuant to arbitration agreements contained in Plaintiff's Owner's Handbook & Warranty Information and the Bluelink Connected Services Agreement. Plaintiffs Vladislav Falevich and Olga Falevich ("Plaintiffs") oppose the motion.

		The Motion is DENIED. Plaintiffs’ claims are brought pursuant to statute and are not rooted in contract. Defendant has failed to demonstrate the agreements in the owner’s handbook or Bluelink Connected Services Agreement cover Plaintiffs’ claims in this case. While the arbitration agreements purports to cover any and all disputes between the parties regarding “[Plaintiff’s] Vehicle”—the scope of an arbitration clause turns on whether the claims are “rooted” in the contractual relationship between the parties. (*Ahern v. Asset Management Consultants, Inc.* (2022) 74 Cal.App.5th 675, 692-693.) “[E]ven under a very broad arbitration provision, such as ‘any controversy or claim arising out of or relating to this agreement,’ ” the subject claims must “ ‘have their roots in the relationship between the parties which was created by the contract’ before they can be deemed to fall within the scope of the arbitration provision.” (*Rice v. Downs* (2016) 248 Cal.App.4th 175, 188.) In *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122, the Supreme Court noted that Song-Beverly disputes do not flow from the contract between the parties but rather “from obligations imposed by statute” and that such disputes “are not intimately founded in or intertwined with the sales contracts.” (*Id*., at p. 1126.) Here, the complaint only contains causes of action brought pursuant to the Song-Beverly Act. Thus, they do not flow from the contract between the parties but rather from obligations imposed by statute. The Motion to Compel Arbitration is DENIED. Defendant shall provide a responsive pleading no later than 15 Court days after notice of this ruling. In addition, because this action was filed on April 23, 2026, the parties shall conduct this action pursuant to the procedures and timeline set forth in Code of Civil Procedure section 871.26. (Code Civ. Proc., § 871.26.) At the hearing, the parties shall be prepared to discuss their current compliance and plans to comply with Code of Civil Procedure section 871.26. The unopposed request for judicial notice is GRANTED. The Case Management Conference is continued to October 1, 2026 at 1:30 p.m. *Plaintiffs to give notice.*

109	Presley vs. Defense International Corporation, 25-01473406	Plaintiff JEREMIAH PRESLEY ("Plaintiff") will and hereby does move this Court for an order: (1) setting aside and vacating the dismissal entered in this action on March 4, 2026; and (2) enforcing the settlement agreement reached by the parties on December 8, 2025, and further confirmed in writing by Defendant's counsel on December 23, 2025, and entering judgment thereon in the amount of $8,000.00. Initially, the court has power under CCP § 473(b) to vacate a voluntary dismissal entered as a result of "mistake, inadvertence, surprise, or excusable neglect". [*Zamora v. Clayborn Contracting Group, Inc*. (2002) 28 Cal.4th 249, 254-255.] Relief is mandatory only from those dismissals which are the "procedural equivalent of a default"; i.e., those which deprive plaintiffs of their day in court. [*See Leader v. Health Indus. of America, Inc*. (2001) 89 Cal.App.4th 603, 618.] However, CCP § 473(b) was never intended to be a "catch-all remedy for every case of poor judgment on the part of counsel which results in dismissal." [*Gotschall v. Daley* (2002) 96 Cal.App.4th 479, 483-484.] Here, Attorney Ahn declares: "10. On March 4, 2026, I filed a Request for Dismissal in this action. This filing was the product of my own inadvertent mistake. At the time of filing, I had before me Defendant's express written confirmation of all material settlement terms on December 23, 2025, Mr. Afoh-Manin's February 2, 2026 representation that the agreement had been reviewed and that he would confirm his client was "good to sign," and his February 13, 2026 representation that he would follow through. Based on these representations and my good-faith, though mistaken, belief that execution and payment were imminent, I filed the dismissal. I did not intend to relinquish Plaintiff's rights under the settlement agreement or to release Defendant from its payment obligation. The filing was not a deliberate or tactical decision. It was inadvertent error on my part, and on my part alone." In this instance, the dismissal was a result of counsel voluntarily filing a Notice of Dismissal. It is not the procedural equivalent of a default; and therefore, relief is not mandatory; but rather, discretionary. To that end, it is unclear why Attorney Ahn would file a Notice of Dismissal on 3/4/2026, when, Defendant had already missed the first payment of the alleged payment plan, which was due on 2/28/2026. [Decl. of Ahn ¶9.]